

SENATE No. 676

The Commonwealth of Massachusetts

PRESENTED BY:

Michael D. Brady

To the Honorable Senate and House of Representatives of the Commonwealth of Massachusetts in General Court assembled:

The undersigned legislators and/or citizens respectfully petition for the adoption of the accompanying bill:

An Act relative to dental Insurance.

PETITION OF:

NAME:

Michael D. Brady

DISTRICT/ADDRESS:

Second Plymouth and Norfolk

SENATE No. 676

By Mr. Brady, a petition (accompanied by bill, Senate, No. 676) of Michael D. Brady for legislation relative to dental insurance plans. Financial Services.

The Commonwealth of Massachusetts

In the One Hundred and Ninety-Fourth General Court
(2025-2026)

An Act relative to dental Insurance.

Be it enacted by the Senate and House of Representatives in General Court assembled, and by the authority of the same, as follows:

1 SECTION 1. Chapter 176X of the General Laws, as appearing in the 2022 Official
2 Edition, is hereby amended by striking out, in Section 2(d), lines 46 and 47, the words “or if a
3 carrier’s reported contribution to surplus exceeds 1.9 per cent”

4 SECTION 2. Chapter 176X of the General Laws, as appearing in the 2022 Official
5 Edition, is hereby amended by striking out Section 3(a)(i) and inserting in place thereof the
6 following words:-market group size, including individual; small groups of 2-50; and large groups
7 of greater than 50; and

8 SECTION 3. Chapter 176X of the General Laws, as appearing in the 2022 Official
9 Edition, is hereby amended by striking out Section 3(c)

10 SECTION 4. Chapter 176X of the General Laws, as appearing in the 2022 Official
11 Edition, is hereby amended by inserting, in Section 3(e), after the words “60 days” in line 96, the
12 following words:- Life insurers will apply the RBC model according to 211 CMR 20.00. Those

13 life and other multi-line carriers that have the majority of their liabilities in non-dental or non-
14 Massachusetts insurance lines shall not exceed 700% of their respective Company Action Level
15 (CAL), as defined in 211 CMR 20.00. Massachusetts-based health and dental-only carriers shall
16 apply the RBC model according to 211 CMR 25.

17 SECTION 5. Chapter 176X of the General Laws, as appearing in the 2022 Official
18 Edition, is hereby amended by striking out Section 3(f) and inserting in place thereof the
19 following words:- The commissioner may waive specific reporting requirements in this section
20 for carriers unable to provide the required information; provided, however, that the
21 commissioner shall provide written notice of any such waiver to the joint committee on health
22 care financing and the house and senate committees on ways and means.